

26NWCV00515 26NWCV00515

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-17

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Case Number: 26NWCV00515 Hearing Date: August 17, 2026 Dept: C

ROSS vs PIH HEALTH

DOWNEY MEDICAL INCORPORATE

CASE NO.: 26NWCV00515

HEARING: 8/17/26 @

9:30 AM

#12

TENTATIVE RULING

Defendant PIH HEALTH

DOWNEY HOSPITAL's Demurrer is SUSTAINED without leave to amend.

Moving party to give

NOTICE.

Plaintiff

sought treatment from Defendant's hospital when she was not feeling well after

a meal. The issue presented here is

whether Plaintiff's complaint was filed beyond the statute of limitations, and

whether it provides enough details to allege a cause of action against Defendant. The Court concludes that the complaint was

filed too late and is uncertain.

Defendant

PIH HEALTH DOWNEY HOSPITAL (Defendant) demurs to Pro Per Plaintiff BERNADEAN

ROSS's (Plaintiff) First Amended Complaint (FAC) on the grounds that it is uncertain, ambiguous, and unintelligible. Additionally, Defendant generally demurs to the FAC on the grounds that each cause of action is barred by the applicable statutes of limitation.

Background

Plaintiff

presented to Defendant's urgent care and reported abdominal pain, nausea, and burning sensation on her lips after eating at McDonalds. (FAC, ¶¶ 26; 28 -29.)

Plaintiff

asserts a cause of action for medical professional negligence. To the extent Plaintiff asserts additional causes of action, those causes of action are unintelligible.

Legal

Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v.

Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

Statute of Limitations

Code of Civil

Procedure Section 340.5 states that “[i]n an action for injury ... against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the Plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Cal. Civ. Proc. Code § 340.5.) Once a plaintiff should have suspected wrongdoing, the statute of limitations commences to run. (Kleefeld v. Superior Court (1994) 25 Cal.App.4th 1680, 1684.) “It is not tolled by efforts to learn more about the matter short of filing suit” and “regardless of extenuating circumstances, the patient must bring his suit within one year after he discovers, or should have discovered, his ‘injury.’” (Id.)

Thus, possession of either presumptive knowledge or actual knowledge will commence the running of the statute. (Sanchez v. South Hoover Hospital (1976) 18 Cal.3d 93, 101.)

Thus, “when the plaintiff has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation . . . the statute commences to run.” (Sanchez v. South Hoover Hospital (1976) 18 Cal.3d 93, 101.) Waiting for confirmation is not enough to toll the statute of limitations, a Plaintiff cannot be willfully ignorant of suspicion, rather, the Plaintiff has a duty to investigate. (Miller v. Bechtel Corp (1983) 33 Cal. 3d 868; Jolly v. Eli Lilly & Co. (1988) 44 Cal. 3d 1103, 1111.) Once a Plaintiff has even a “suspicion of wrongdoing . . . [he] must decide whether to file suit or sit on his rights.” (Id.)

Here,

Plaintiff presented to Defendant’s urgent care on July 2, 2023. (FAC, ¶¶ 1, 16.) Plaintiff filed the original Complaint on February 11, 2026, which was later amended on June 15, 2026. Plaintiff alleges to have issued a complaint to Defendant’s risk management department in “August 2025.” (FAC, ¶ 3.18.)

In
opposition, Plaintiff reiterates the same uncertain facts, as Plaintiff alleged
in the FAC.

The Court
finds that Plaintiff fails to allege facts demonstrating that the medical
professional negligence cause of action is not barred by the applicable statute
of limitations. Plaintiff fails to allege facts that demonstrate why Plaintiff
did not reasonably discover the injury within one year of presenting to
Defendant's urgent care. Indeed, Plaintiff fails to allege at which date Plaintiff
discovered the wrongdoing altogether.

Accordingly,
the demurrer is SUSTAINED without leave to amend.

Uncertainty,
Failure to State a Cause of Action

A
defendant may demur to a complaint on the ground that it is uncertain. (Code Civil
Proc,m § 430.10(f).) The term "uncertain" includes "ambiguous" and
"unintelligible." (Van Horn v. Department of Toxic Substances Control
(2014) 231 CA4th 1287, 1295.) Demurrers for uncertainty are disfavored and
judges sustain them only when the complaint is so incomprehensible that the
defendant cannot reasonably respond. (Lickiss v Financial Indus. Regulatory
Auth. (2012) 208 CA4th 1125, 1135.)

The
Court finds that even under a liberal reading of Plaintiff's allegations, the
allegations are so uncertain that it is unclear what Defendant's wrongdoing is,
when Plaintiff discovered it, how Plaintiff was injured by Defendant's
wrongdoing, and what causes of action Plaintiff is pursuing. In Plaintiff's
opposition, the Court is only able to discern that Plaintiff's grievance
against Defendant is its failure to "issue that [sic] whole completed record to
the patient. The discharge release record appears to be missing some
information that is located in the nurse practitioner's notes. (Opp., p. 6: 17-19.) Plaintiff does not make
clear what information is missing and how she was harmed by the missing
information.

Accordingly,

the demurrer is SUSTAINED without leave to amend.